

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE
WIFE, LLC

Plaintiff

vs.

KRISTEN JACOBS

Defendant.

*

CASE NO. 24-498

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JUDGE JEANNINE N. PRATT

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AFFIDAVIT OF CHELSEA SMALLWOOD

STATE OF CALIFORNIA)
COUNTY OF Ventura) SS:

Now comes the Affiant, Chelsea Smallwood, being first duly cautioned and sworn according to law, and hereby avers and states as:

1. Affiant states that she is an adult, has personal knowledge of the following, and is competent to testify thereto;

2. Affiant states that she is the Owner of The Other Woman and the Wife LLC ("TOW"), Plaintiff in the above-captioned matter, and has been in that capacity since October 24, 2024.

3. Affiant states that she has custody and control of TOW's documents and records, specifically including documents and records pertaining to the above-captioned matter.

4. Affiant states that Kristen Jacobs is subject to the above-captioned civil action in the Miami County Common Pleas Court, Case No. CV 2024 24-498.

5. This action arises from the intentional infiltration of TOW in a deliberate effort to interfere with the operation of its online community and intimidate its members.

6. Affiant states that on or around September 11, 2023, Kristen Jacobs joined the TOW community using an anonymous profile. However, her identity was confirmed through her credit card information. Attached as **Exhibit "1"** is a true and accurate copy of Kristen Jacobs' invoice, which is fully incorporated herein.

7. Affiant further states that, upon joining the TOW community, subscribers are required to agree to the Terms of Service and Privacy Policy.

8. As of September 11, 2023, the applicable Terms of Service were the version last updated on February 7, 2023. Attached as **Exhibit "2"** is a true and accurate copy of the February 7, 2023, Terms of Service, which is fully incorporated herein.

9. Affiant states, upon information and belief, that Kristen Jacobs began gathering information from the TOW community, including screenshots of posts and pictures of members. She subsequently engaged in doxing activities, targeting Affiant and other TOW community members, in violation of the Privacy Policy. Attached as **Exhibit "3"** is a true and accurate copy of the Privacy Agreement, which is fully incorporated herein.

10. On or around December 2023, Affiant removed Kristen Jacobs from the TOW community.

11. Affiant states that as a result of Kristen Jacobs' doxing activities, which effectively held TOW hostage, the TOW online community was temporarily taken offline. This resulted in revenue loss and the issuance of refunds.

12. Affiant asserts that the damages suffered by TOW were directly caused by Kristen Jacobs' intentional interference with and intimidation of TOW community members through the dissemination of private information.

Further, Affiant sayeth naught.

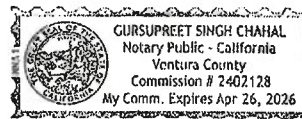


Chelsea Smallwood

Sworn to before me and subscribed in my presence, a Notary Public in and for the State of California, by the aforesaid **Chelsea Smallwood**, to me known to be the person who executed the foregoing instrument, and who acknowledged that he executed the same as his free act and deed, on December 19, 2024.



Notary Public
My Commission Expires: APR 26, 2026



Circle Privacy Policy

This Privacy Policy was updated on, and its effective date is: December 20, 2021.

CircleCo, Inc. is an all-in-one white-labeled community platform for creators and brands, enabling them to creating engaging discussions, live streams, chat, events, and memberships all in one place under their own brand.

This Privacy Policy explains how CircleCo, Inc. ("Circle" "we," "us," or "our") collects, uses, and discloses information about you when you access or use our Circle Website ("Website"), <https://circle.so>, or our Circle Web Application ("App") and other online products or services that link to this Privacy Policy through the Website or the App (collectively, the "Services"). This Privacy Policy does not apply to any other data gathered or used by Circle including data collected through websites that do not link to this Privacy Policy.

By using the Website, App, or Services or by otherwise interacting with them, you assent to this Privacy Policy.

If you do not assent to this Privacy Policy, do not use the Website, App, or Services or otherwise interact with or submit personally identifiable information ("PII") or personal information ("PI") to the Website, App, or Services.

We reserve the right, at our discretion, to change, modify, add, or remove portions of this Privacy Policy at any time. If we make changes, we will notify you by revising the date at the top of the policy and, in some cases (for example if we plan to use your information in a way that materially differs from this Privacy Policy), we may provide you with additional notice (such as adding a statement to our website homepage or sending you a notification).

We encourage you to review the Privacy Policy whenever you access the Website, App, or Services or otherwise interact with Circle to stay informed about our information practices and the choices available to you. Your continued use of the Website, App, or Services following the posting of any changes to this policy verifies that you accept such changes.

When our customers and their admins use our Website, App, or Services to submit, manage, or otherwise use content relating to our customers' data ("Customer Data"), we have contractually committed ourselves to only process such information on



behalf of and under the instruction of the respective customer, who is the “data controller”. This Privacy Policy does not apply to such processing and we recommend you read the privacy policy of the respective customer if their processing concerns your personal information.

Information Collection

When you use the Website, App, or Services, we may collect the following types of information from and about you. Some of this information may be considered “personally identifiable information” (“PII”) or “personal information” (“PI”), meaning it reasonably identifies you or your device or it is reasonably associated with you. It does not include transactional data related to purchases at or through the Website, App, or Services, unless we combine such transactional data with your PII or PI, which we may do. We also collect, use, and disclose aggregated or de-identified data that does not identify you or your device.

Information You Provide to Us:

When you open an account with us through the Services (“Account”), we may ask you to provide us with identifiers and contact information such as your name, email address, and any other information you may provide. We may also collect identifiers when you participate in any interactive features of the Services (like send a message through the Services), fill out a form, publish statements on our platform, participate in a contest or promotion, make a purchase, apply for a job, communicate with us via third-party social media sites, request customer support, or otherwise communicate with us.

When you pay for our Services, we ask for your credit card information. Your credit card is passed directly to our payment processor. We do not store this information on our servers. We do store a record of the payment transaction, including the last 4 digits of the credit card number, for account history, invoicing, and billing support. We also store your billing address to calculate any sales tax due in the United States, to maintain records that may be used for investigations of potentially fraudulent credit card transactions, and to print on your invoices. We may collect commercial information such as your purchase history, including records of products or services you have purchased, provided, returned, or are considering purchasing from us.

Finally, we may collect other content and information you share through the Services when you submit information or content, such as by commenting on a blog or participating in online communities, or when you otherwise interact with our Services. When you interact with other users, our customers, their admins and their

online communities on our Website, App or Services, they may collect any content or information you share with them. Circle may also collect any content or information you share with others through the Website, App or Services.

Information That May Be Collected Automatically Through Our Website, App, or Services:

When you access or use the Website, App, or Services or transact business with us, we may automatically collect information about you, including:

Identifiers, such as your IP address, Internet service provider (ISP), the type of mobile device you use, the temporary or persistent unique device identifiers (sometimes called UDID), and identifiers associated with browser cookies, web beacons and similar technologies we deploy on our Website, App, or Services;

Internet or Other Electronic Network Activity Information: We may collect information about the devices and computers you use to access our Website, App, or Services, such as browser type, language, operating system, the referring web page, pages visited, and hyperlinks clicked. When you use our Website, App, or Services, we may collect usage information sent to us by your computer, mobile, or other access device that tells us how you are using the Website, App, or Services and other information about your internet activity ("usage information").

Commercial Information such as your purchase history, including records of products you have purchased or are considering purchasing from us, services you have provided or have had provided to you, such as transactional information when you make a purchase, we collect information about the transaction, such as services provided, product details, purchase price, and date and location of the transaction.

Geolocation Information. We may derive the approximate location of your device from your IP address. We may combine this information with other location-based information, such as your billing or postal code. You have the ability to stop the collection of precise location information at any time (see "Your Choices" below for details).

We (and our third-party partners and service providers) use different technologies to collect information, including cookies and web beacons. Cookies are small data files stored on your hard drive or in device memory that help us improve our Services and your experience, see which areas and features of our Services are popular, and count visits. Web beacons (also known as "pixel tags" or "clear GIFs") are electronic images that may be used in our Services or emails and help deliver cookies, count visits, and

understand usage and campaign effectiveness. For more information about cookies and how to disable them, see our Cookie Policy.

Information Collected from Third Parties:

We may also obtain information about you from other sources. For example, we may collect information about you from third parties, including but not limited to mailing list providers and publicly available sources. When you interact with our customers, their admins, online communities and other users on our Website, App or Services, we may collect from them any content or information you choose to share or provide. We may also obtain information about you from other sources, including but not limited to social media platforms, marketing partners, and other third parties. For example, if you connect your social media account to your Account, or create or log into your Account through a social media site, certain information from your social media account will be shared with us, which may include information that is part of your profile or your friends' profiles. In addition, we may supplement the information that you provide us and/or the information we collect from you with demographic, social, and other information about you that we receive from other sources. Once we combine information from other sources with your information collected pursuant to this policy, we apply this policy to the combined information as long as it is combined.

Information Usage

We use the information we collect about you for a variety of business and commercial purposes, including, but not limited to:

- provide, maintain, and improve the Website, App, or Services;
- process, complete, and maintain records on transactions;
- provide our users, our customers and their admins, and the online communities with the Website, App or Services. Other users, our customers and their admins may use your personal information for their own purposes, such as to provide you with content, discussions, events and memberships;
- send you technical notices, updates, security alerts, and support and administrative messages;
- respond to your comments, questions, and requests, and to provide customer service;
- communicate with you about products, services, offers, promotions, rewards, and events offered by Circle and others, and provide news and information we think will be of interest to you;

- monitor and analyze trends, usage and activities in connection with our Website, App, or Services;
- detect, investigate and prevent fraudulent transactions and other illegal activities and protect the rights and property of Circle;
- facilitate contests, sweepstakes and promotions and process and deliver entries and rewards;
- link or combine with information we get from our Website, App, or Services and from others to help understand your needs and provide you with better service;
- maintain appropriate records for internal administrative purposes;
- carry out any other purpose described to you at the time the information was collected or permitted by law.

We may share information about you, including personal information, as follows or as otherwise described in this Privacy Policy.

With the Circle Corporate Family. We may share the information we collect about you between and among our current and future parents, affiliates, subsidiaries, and other companies under common control and ownership.

With Service Providers or Customers. We may disclose your information to vendors, consultants and other service providers under contract who help with our business operations or who we provide services to (such as web hosting and operations of the App, IT, to process opt-out requests, to assist us in responding to consumer requests for access, deletion, or correction of information, direct mail and email distribution, site analytics, operations or legal and compliance services, and customers purchasing services from Circle). With your permission, we may also disclose your information to our customers.

With Data Analytics and Aggregation Vendors. We may share aggregated information that does not include your PII or PI, and we may otherwise disclose non-identifying information such as general (non-specific) geographic location, device/browser technology, onsite behavior, population data, user segmentation, survey results, and log data, with third parties for data analysis, demographic profiling, and other purposes. Any aggregated information shared in this manner will not contain your personal information.

With Other Users of the Website, App, or Services. If you provide or share information with other users on the Website, App or Services, they may use it for their own purposes. If you post information or content, such as by posting photos, commenting on a blog, or participating in online communities, or when you interact with the Website, App, or Services through social media sites, plug-ins or other

applications, depending upon your privacy settings, this information may become public on the Internet. We cannot prevent further use of this information. You can control what data you share through privacy settings available on some social media sites. Please refer to those third-party sites' privacy policies and terms of use to learn more about their privacy practices, which we do not control.

With Legal and Law Enforcement. We may share information collected about you with law enforcement, governmental agencies, or authorized third parties, in response to a verified request relating to a criminal investigation or alleged illegal activity or any other activity that may expose us, you, or any other Website, App, or Services user to legal liability or if we believe disclosure is in accordance with, or required by, any applicable law or legal process, including lawful requests by public authorities to meet national security or law enforcement requirements.

In Connection with a Change of Control. We may transfer or disclose your information in connection with, or during negotiations of, any merger, sale of company assets, financing or acquisition of all or a portion of our business by another company.

With your Consent. Where applicable, we may share your information with your consent or at your specific direction.

Children's Privacy

Our App and Services are not intended for individuals under the age of 16. No one under the age of 16 is authorized to provide any personal information through the Website, App, or Services. We do not knowingly collect personal information from our Website, App, or Services from users in this age group. If we learn that we have collected or received personal information from a child under the age of 16, we will take reasonable steps to delete that information. If you believe we might have any information from or about a child under 16, please contact us at the email address below.

Social Sharing Features

The Website, App, or Services may offer social sharing features and other integrated tools, which let you share actions you take on our Website, App, or Services with other media, and vice versa. Your use of such features enables the sharing of information with your friends or the public, depending on the settings you establish with the entity that provides the social sharing feature. For more information about the purpose and scope of data collection and processing in connection with social

sharing features, please visit the privacy policies of the entities that provide these features.

Links to Third-Party Sites

Our Website, App, or Services may contain links to other websites, including our affiliated or co-branded web sites. Other websites may also reference or link to our Website, App, or Services. These other websites may not be controlled by us. We encourage our users to read the privacy policies of every website or mobile application that collects PII or PI. We do not endorse, screen or approve, and are not responsible for the privacy practices or content of other websites or mobile applications. Visiting these other websites is at your own risk.

Advertising and Analytics Services Provided by Others

We may allow others to provide analytics services and serve advertisements on our behalf across the Internet and in the Website, App, or Services. These entities may use cookies, web beacons, device identifiers and other technologies to collect information about your use of the Website, App, or Services and other websites and applications, including your IP address, web browser, mobile network information, pages viewed, time spent on pages or in apps, links clicked, and conversion information. This information may be used by Circle and others to, among other things, analyze and track data, determine the popularity of certain content, deliver advertising and content targeted to your interests on our Website, App, or Services, and better understand your online activity. Please see our Cookie Policy for more information about these practices and any choices you may have regarding cookies.

Transfer of Information to the U.S. from Other Countries

Circle is based in the United States and we may process and store information in the U.S. and other countries. Therefore, we and our service providers may transfer your information to, or store or access it in, jurisdictions that may not provide equivalent levels of data protection as your home jurisdiction.

Additional Notice to European Residents

If you are located in the European Economic Area ("EEA"), United Kingdom ("UK") or Switzerland, or otherwise engage with our European operations, please see the European Privacy Policy for additional European-specific privacy information, including what constitutes your personal data, the lawful bases we rely on to process

your personal data, how we use cookies when you access our Website from the EEA, UK or Switzerland, and your rights in respect of your personal data.

Circle has appointed Data Rep as its EU representative for purposes of GDPR. Our EU representative may be contacted via legal@circle.so.

Additional Notice to California Residents

In accordance with the California Consumer Privacy Act (the "CCPA"), the following table summarizes our personal information collection, use, and sharing practices in the preceding twelve (12) months since we last updated this Privacy Policy.

Category of Personal Information	Personal Identifiers and Contact Information
Examples	Name, username, password, email address, customer number, IP address, unique device ID, tracking technologies (e.g., pixel tags, cookies) to collect usage information
Business Purpose(s) for Which Information is Used	• Maintaining and servicing Accounts • Processing and fulfilling orders and transactions • Register you as a customer or a candidate • Process and deliver or accept services • Provide customers with the services • Notify you about changes to our terms and conditions of use or privacy policies • Request that you write a review or take a survey • Administer and protect our business website • Deliver relevant Website content and advertisements and measure or understand the effectiveness of the advertising • Make suggestions and recommendations about services that may interest you • Respond to inquiries through the Website • Verify and respond to consumer requests
Categories of Sources from Which Information Received	Users and customers of our Website, App, or Services

Categories of Third Parties to Whom Info Was Disclosed in Last 12 Months	• Maintaining and servicing Accounts • IT vendors, cloud computing providers, database providers, customer service vendors, and service providers that that need access to such information to perform services for us • Data analytics providers Circle • Customers requiring this information to obtain services and/or for safety and security purposes.
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Category of Personal Information	Internet Activity and Technical Data
Examples	Domain information, pages visited, cookie information, session information (such as time spent on certain pages and page interaction information), date and time of your visit, webpages visited, links clicked, browser ID, browser type, device ID, operating system, form information downloaded, domain name from which our site was accessed, and cookies
Business Purpose(s) for Which Information is Used	• Improve the Website experience for all visitors • Understand the demographics of our Website visitors • Operate and maintaining the Website • Provide customers with the services • Detect security incidents • Debug to identify and repair errors that impair existing intended functionality of the Website • Protect against malicious or illegal activity and prosecuting those responsible • Verify and respond to consumer requests
Categories of Sources from Which Information Received	Users of our Website, App, or Services and the devices or browsers they used
Categories of Third Parties to Whom	• Maintaining and servicing Accounts

Info Was Disclosed in Last 12 Months	• IT vendors, cloud computing providers, database providers, customer service vendors, and service providers that that need access to such information to perform services for us • Data analytics providers Circle • Maintaining and servicing Accounts • IT vendors, cloud computing providers, database providers, customer service vendors, and service providers that that need access to such information to perform services for us • Data analytics providers Circle
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Category of Personal Information	Geolocation Data
Examples	IP Address
Business Purpose(s) for Which Information is Used	• Improve the Website experience for all visitors • Understand the demographics of our Website visitors • Detect security incidents • Debug to identify and repair errors that impair existing intended functionality of the Website • Protect against malicious or illegal activity and prosecuting those responsible • Verify and respond to consumer requests
Categories of Sources from Which Information Received	Users of our Website, App, or Services and the devices or browsers they used
Categories of Third Parties to Whom Info Was Disclosed in Last 12 Months	• Maintaining and servicing Accounts • IT vendors, cloud computing providers, database providers, customer service vendors, and service providers that that need access to such information to perform services for us • Data analytics providers Circle

Category of Personal Information	Financial Data
Examples	Card Number
Business Purpose(s) for Which Information is Used	• Manage payments, fees, and charges • Collect and recover funds
Categories of Sources from Which Information Received	Users of our Website, App, or Services
Categories of Third Parties to Whom Info Was Disclosed in Last 12 Months	• Maintaining and servicing Accounts • IT vendors, cloud computing providers, database providers, customer service vendors, and service providers that that need access to such information to perform services for us • Data analytics providers Circle • Circle customers requiring this information to obtain services and/or for safety and security purposes

Category of Personal Information	Transaction Data
Examples	Details about your payment and details about the services you considered, purchased or provided
Business Purpose(s) for Which Information is Used	• Manage payments, fees, and charges • Collect and recover funds
Categories of Sources from Which Information Received	Users of our Website, App, or Services
Categories of Third Parties to Whom Info Was	• Maintaining and servicing Accounts

Disclosed in Last 12 Months	• IT vendors, cloud computing providers, database providers, customer service vendors, and service providers that that need access to such information to perform services for us • Business customers who require information for safety or security purposes • Data analytics providers Circle • Circle customers requiring this information to obtain services and/or for safety and security purposes
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Category of Personal Information	Profile Data
Examples	Username, email address, password, purchases, orders, customer interests, customer preferences, customer feedback, and survey responses
Business Purpose(s) for Which Information is Used	• Notify you about changes to our terms and conditions of use and privacy policy • Request that you write a review or take a survey • Deliver relevant website content and advertisements and measure or understand the effectiveness of the advertising • Make suggestions and recommendations about services that may interest you • Provide our customers the capability to deliver their services and content to you, and allow them to use information for their own purposes, such as analyzing their user base
Categories of Sources from Which Information Received	Users and customers of our Website, App, or Services
Categories of Third Parties to Whom Info Was Disclosed in Last 12 Months	• Maintaining and servicing Accounts • IT vendors, cloud computing providers, database providers, customer service vendors, and service

	providers that that need access to such information to perform services for us • Business customers who require information for safety or security purposes • Data analytics providers Circle • Circle customers requiring this information to obtain services and/or for safety and security purposes
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Category of Personal Information	Usage Data
Examples	Information about how you use our Website, App, or Services
Business Purpose(s) for Which Information is Used	• Deliver relevant website content and advertisements and measure or understand the effectiveness of the advertising • To use data analytics to improve of website, product/services, marketing, and customer relationships
Categories of Sources from Which Information Received	Users of our Website, App, or Services and the devices or browsers they used
Categories of Third Parties to Whom Info Was Disclosed in Last 12 Months	• Maintaining and servicing Accounts • IT vendors, cloud computing providers, database providers, customer service vendors, and service providers that that need access to such information to perform services for us • Business customers who require information for safety or security purposes • Data analytics providers Circle

Category of Personal	Marketing and Communications Data
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Information	
Examples	Your preferences in receiving marketing from Circle and your communication preferences
Business Purpose(s) for Which Information is Used	• Manage payments, fees, and charges • Collect and recover funds • Notify you about changes to our terms and conditions of use and privacy policy • Request that you write a review or take a survey • Deliver relevant website content and advertisements and measure or understand the effectiveness of the advertising • Provide customers with the services
Categories of Sources from Which Information Received	Users of our Website, App, or Services and the devices or browsers they used
Categories of Third Parties to Whom Info Was Disclosed in Last 12 Months	• Maintaining and servicing Accounts • IT vendors, cloud computing providers, database providers, customer service vendors, and service providers that that need access to such information to perform services for us • Business customers who require information for safety or security purposes • Data analytics providers Circle

Sale of Personal Information:

We do not sell your information. We and our business partners may use tracking technologies to help us to understand our customers and users of the Website, App, or Services, to enhance your online experience, and customize our offerings in ways that may be deemed a "sale" of personal information under the applicable law.

We do not knowingly sell or otherwise disclose the PII or PI of minors under 16.

Choices for Access, Deletion, Opt-Out of Sale, and Right to Non-Discrimination for California Residents or As Required by Law:

If you are a California resident, you have the right to know what personal information we collect, disclose, and “sell” about you (as that term is defined in the CCPA). Additionally, you have the right to access, delete and opt out from the “sale” of your personal information.

Note that in relation to Customer Data, act as a “service provider” and have contractually committed ourselves to only process such information on behalf of and under the instruction of the respective customer. Please contact the respective customer to exercise your CCPA rights with respect to Customer Data.

Your Rights:

1. Right to Know. The right to request, up to 2 times in a 12-month period, that we identify to you (1) the categories of personal information we have collected, disclosed or sold about you in the last 12 months, (2) the categories of sources from which the personal information was collected, (3) the business purpose for which we use this information, and (4) the categories of third parties with whom we share or have shared your personal information in the last 12 months;
2. Right to Access. The right to request, up to 2 times in a 12-month period, that we provide you access to or disclose to you, free of charge, the specific pieces of personal information we have collected about you in the last 12 months;
3. Right to Delete. The right to request, up to 2 times in a 12-month period, that we delete personal information that we collected from you, subject to certain exceptions;
4. Right to Opt-Out. The right to opt-out of the sale of your personal information to third parties (Note: we do NOT sell your personal information to third parties);
5. The right to designate an authorized agent to submit one of the above requests on your behalf;
6. The right to not be discriminated against in receiving different or less favorable pricing, service or financial incentive for exercising any of the above rights.

To exercise these privacy rights and choices, please follow the instructions below:

- How to Request That We Identify or Provide You Access to Personal Information: You may request that we identify or provide you access to your personal information twice in a 12-month period. To do so, please email us at legal@circle.so. In response to a request to identify your personal information, we will identify to you (1) the categories of personal information we have collected, disclosed or sold about you in the last 12 months, (2) the categories of sources from which the personal information was collected, (3) the business purpose for which we use this information, and (4) the categories of third parties with whom we share or have shared your personal information in the last 12 months. In

response to a request to access your personal information, we will produce an "Access Report" detailing the personal information we have collected, disclosed, and/or sold about you. This Access Report will be delivered by mail or electronically at your request.

- **How to Request Deletion of Personal Information:** You may request that Circle delete the personal information it has collected and/or maintained about you. To do so, please email legal@circle.so. Note, we may need to retain certain personal information as permitted by law, such as to complete the transaction for which the personal information was collected, provide a requested good or service, detect security incidents, protect against malicious, deceptive, fraudulent or illegal activities, comply with legal obligations or to enable solely internal uses that are reasonably aligned with your expectations or lawful within the context in which you provided the information.
- **How to Opt-Out of the Sale of Personal Information:** We do not sell, share, or rent your personal information in any way.

Verification:

Please note, we will take steps to verify your identity before fulfilling any of the above requests. If you maintain an Account with us, we will verify your identity through existing authentication practices for the Account (e.g., login and password). If you are not a registered Website, App, or Services user, we will verify your identity by matching two or three data points that you provide with data points that we maintain and have determined to be reliable for the purposes of verification.

Do Not Track Signals:

The Website, App, and Services do not respond to Do Not Track ("DNT") signals to the extent received from a web browser. Because Circle is not aware of a universally accepted technological or legal standard for recognizing or honoring DNT signals as reflections of user choice, we do not respond to them at this time.

Consumers with Disabilities:

This policy is in a form that is accessible to consumers with disabilities.

Your Choices

Account Information:

You may update and correct certain Account information you provide to us at any time by logging into your Account. If you wish to delete or deactivate your Account,

you may email us at legal@circle.so, but note that we may retain certain information as required by law or for legitimate business purposes. We may also retain cached or archived copies of information about you for a certain period of time.

Location Information:

If you initially consent to our collection of this location information through the Website, App, or Services, you can subsequently stop the collection of this information at any time by changing the preferences on your computer or device. If you do so, certain features may no longer function properly.

Cookies:

For more information about our and our third-party partners' use of cookies and related technologies to collect information automatically, and any choices you may have in relation to cookies, please see our Cookie Policy.

Communications with Circle:

We want to communicate with you in ways you want to hear from us. Examples include email, which may contain special offers and new product announcements.

To the extent that you are receiving marketing communications from the Website, App, or Services you may unsubscribe or opt-out of future communications as follows: If you no longer wish to receive emails you may click on the hyperlink titled "Unsubscribe" at the bottom of any marketing related email Circle sends to you, and then follow the directions to unsubscribe from email, or you can modify your preferences in your Account settings. Please note that if you opt out of receiving promotional communications from us, we may still send you transactional communications, including emails about your account or purchases.

Mobile Push Notifications/Alerts:

With your consent, we may send promotional and non-promotional push notifications or alerts to your mobile device. You can deactivate these messages at any time by changing the notification settings on your mobile device. By downloading and using our App, you may also receive promotional messages, offers, news and information about Circle. If you do not want to receive "in app" messages, offers, news and information, do not download or use our App.

Contact Us

If you have any questions, comments or concerns about our Privacy Policy, you may email us at legal@circle.so. Please do not email any confidential, sensitive or personal information to this email. Additionally, if you have any questions, comments or concerns about our Privacy Policy feel free to send correspondence to the following address:

CircleCo, Inc.
228 Park Ave S
PMB 52933
New York, NY 10003

9:24

LTE 81



\$78.00 invoice

≡ Number

4D672B08-0001

≡ Status

Paid

📅 Created

Sep 11, 2023 at 2:43 PM

📅 Finalized

Sep 11, 2023 at 2:43 PM

Payment page



\$78.00 payment

Sep 11, 2023 at 2:44 PM



Customer

Kristen Jacobs



Chelsea's Subscription

\$78 every 3 months since 9/11/23



Summary

Billed to

k_turner1287@yahoo.com

Billing details

Kristen Jacobs

Number

4D672B08-0001

Currency

usd

🔗 Share



Home



Payments



Balances



Customers



Search



Circle Terms of Service

Last updated: February 7, 2023

Circle is an all-in-one, white-labeled community platform for creators and brands, enabling them to create engaging discussions, live streams, chat, events, and memberships all in one place under their own brand. Circle is an online community platform for creators that helps them bring their discussions, memberships, and content to their audience and community, under the creator's own brand.

These Terms of Service (these "Terms") are a binding contract between you and CircleCo, Inc. ("we", "us", "our", "Company", or "Circle"). The Terms apply to your access to, and your use of our website at <https://circle.so> (our "Website"), our web and applications (our "App") and our other online products or services that link to these Terms (collectively, the "Services") through our Website or App.

By accessing or using our Services, you signify and agree that you have read, understood, and agree or consent to be bound by these Terms. If you do not agree with or consent to being bound any of the Terms, you are not authorized to use our Services. You also acknowledge that you have read and understood how your personal information will be collected, used, and shared, as set forth in our Privacy Policy.

PLEASE READ THESE TERMS CAREFULLY TO ENSURE THAT YOU UNDERSTAND EACH PROVISION. THESE TERMS CONTAIN A MANDATORY INDIVIDUAL ARBITRATION AGREEMENT IN THE SECTION TITLED "DISPUTE RESOLUTION; BINDING ARBITRATION" AND A CLASS ACTION/JURY TRIAL WAIVER PROVISION IN THE SECTION TITLED "CLASS ACTION/JURY TRIAL WAIVER" THAT REQUIRE, WITH ONLY SPECIFIED EXCEPTIONS IN THE AFOREMENTIONED SECTIONS OR UNLESS YOU OPT OUT PURSUANT TO THE INSTRUCTIONS PROVIDED THEREIN, THE EXCLUSIVE USE OF FINAL AND BINDING ARBITRATION ON AN INDIVIDUAL BASIS ONLY TO RESOLVE DISPUTES, RATHER THAN JURY TRIALS OR CLASS, COLLECTIVE, PRIVATE ATTORNEY GENERAL OR REPRESENTATIVE ACTIONS OR PROCEEDINGS. As provided in greater detail in these Terms (and without limiting the express language of these Terms), you acknowledge the following:

- each component of our Services is licensed, not sold, to you, and you may use the Services only as set forth in these Terms;



- the use of the Services may be subject to separate third-party terms of service and fees, including, without limitation, terms of service and fees from your mobile network operator, including fees charged for data usage and overage, which are solely your responsibility;
- you consent to the collection, use, and disclosure of your personally identifiable information in accordance with our Privacy Policy;
- the Services are provided "as is" without warranties of any kind and our liability to you is limited;
- disputes arising under these Terms will be resolved by binding arbitration, as described below; and
- if you are using our App on an iOS-based device, you agree to and acknowledge the "Notice Regarding Apple" below.

1. API Terms

Customers may access their Service data via the Application Program Interface ("API"). Any use of the API, including use of the API through a third-party product that accesses the Service, is bound by the Terms plus the following specific terms:

- You may not sell, rent, lease, sublicense, redistribute, or syndicate access to our API.
- You may not and you may not permit any third party to: (i) access our API or documentation in violation of any law or regulation; (ii) access our API in any manner that comprises, breaks, or circumvents any of our technical processes or security measures associated with the Services or in a way that poses a security vulnerability to customers or users of the Services; (iii) access our API or documentation in order to replicate or compete with the Services; (iv) attempt to reverse engineer or otherwise derive source code, trade secrets, or know-how of our API or Services; or (v) attempt to use our API in a manner that exceeds rate limits or constitutes excessive or abusive usage.
- You expressly understand and agree that the Company shall not be liable for any damages or losses resulting from your use of the API or third-party products that access data via the API.

If we believe that there is a violation of the Terms that can simply be remedied by your modification or update of your usage, we will, in most cases ask you to take direct action rather than intervene. In some instances, we may directly step in and take what we determine to be appropriate action if you are not responsive, or if we believe there is a credible risk of harm to us, the Services, our customers, users, or any third parties.

2. Notice Regarding Apple

You acknowledge that these Terms are between you and Circle only, not with Apple, and Apple is not responsible for any App or the content thereof. Apple has no obligation whatsoever to furnish any maintenance and support services with respect to any App. In the event of any failure of any App to conform to any applicable warranty, then you may notify Apple and request that Apple refund the purchase price for the relevant App to you; and, to the maximum extent permitted by applicable law, Apple has no other warranty obligation whatsoever with respect to any App. Apple is not responsible for addressing any claims by you or any third party relating to any App or your possession and/or use of any App, including, but not limited to: (i) product liability claims; (ii) any claim that any App fails to conform to any applicable legal or regulatory requirement; and (iii) claims arising under consumer protection or similar legislation.

Apple is not responsible for the investigation, defense, settlement, and discharge of any third party claim that any App or your possession and use of any App infringes that third party's intellectual property rights. You will comply with any applicable third-party terms, when using any App. Apple, and Apple's subsidiaries, are third-party beneficiaries of this section of these Terms, and upon your acceptance of these Terms, Apple will have the right (and will be deemed to have accepted the right) to enforce this section of these Terms against you as a third-party beneficiary of these Terms.

You hereby represent and warrant that: (a) you are not located in a country that is subject to a U.S. Government embargo, or that has been designated by the U.S. Government as a "terrorist supporting" country; and (b) you are not listed on any U.S. Government list of prohibited or restricted parties. If Circle provides a translation of the English language version of these Terms, the translation is provided solely for convenience, and the English version will prevail.

3. Third-Party Software

The software you download in connection with any App consists of a package of components, including certain third-party software provided under separate license terms. Your use of the third-party software in conjunction with the App in a manner consistent with the terms of these Terms is permitted, however, you may have broader rights under the applicable third-party terms and nothing in these Terms is intended to impose further restrictions on your use of the third-party software.

4. Target Audience

The Services are not targeted toward, marketed to, or intended for use by anyone under the age of 18. We encourage parents to supervise their children's digital activities and to consider using parental control tools available from online services and software manufacturers that help provide a child-friendly online environment. These tools can also keep children from disclosing their name, address and other personal information without parental consent online.

If you are using the Services on behalf of any person, you represent and warrant that you are authorized to accept these Terms on such person's behalf and that such person agrees to be responsible to us if you or such person violates these Terms.

5. Accounts and Account Security

1. **Eligibility:** You must be at least 18 years of age to use our Services. By agreeing to these Terms, you represent and warrant to us that: (a) you are at least 18 years of age; (b) you have not previously been suspended or removed from our Services; and (c) your registration and your use of the Services complies with all applicable laws and regulations. If you are using the Services on behalf of an entity, organization, or company, you represent and warrant that you have the authority to bind that entity, organization, or company to these Terms and that you agree on behalf of that entity, organization, or company to be bound by these Terms.
2. **Registration:** Anyone who is otherwise eligible to use the Services in accordance with these Terms may browse the public-facing pages of the Services. But to use most features of the Services, you must create an account ("Account"). Each Organization will designate an administrator for that Organization's Account (the "Administrator"). Each Administrator may authorize other individuals from the same Organization to create an Account associated with that Organization (those authorized individuals, "Authorized Users"). Organizations, Administrators, and Authorized Users are, collectively, "Registered Users" and Registered Users and non-Registered Users are, collectively, "Users."
3. **Account Security:** Your Account is personal to you, and you may not share your Account information with, or allow access to your Account by, any third party. As you will be responsible for all activity that occurs under your access credentials, you will use reasonable efforts to prevent unauthorized access to or use of the Services and to preserve the confidentiality of your username or email address and password, and any device that you use to access the Services. You are solely responsible for maintaining the confidentiality of your password. Note, if you

write into customer support requesting assistance, we are able to reset or set specific passwords for you. However, after you are able to login successfully, we encourage you to change your password. If you have any reason to believe that your account credentials have been compromised or that your Account has been accessed by a third party, you will immediately notify Circle via e-mail at legal@circle.so. Please note that Circle is able to mask into your account to see your account's perspective for customer support and moderation purposes. You will be solely responsible for the losses incurred by Circle and others due to any unauthorized use of your Account.

6. Restrictions, Ownership, and License

The materials provided, contained in or made available for use in connection with the Services (collectively, the "Materials") are protected by law, including, but not limited to United States (U.S.) and international copyright, trademark, patent, trade secret and other intellectual property or proprietary rights laws. The Services are controlled and operated by Circle from its offices within the U.S. Circle makes no representation that any of the Services or Materials are appropriate or available for use in other locations, and access to them from territories where their contents are illegal is prohibited. Those who choose and access any of the Services from other locations do so on their own initiative and are responsible for compliance with applicable local laws.

All rights, title and interest (including all copyrights, trademarks and other intellectual property rights) in the Services and the Materials belong to Circle or the licensor of the material. Further, all names, designs, graphics, data, images, pictures, logos and icons on the Services and the Materials are proprietary information or proprietary marks of Circle or the licensor of the material. The compilation of all content, including the look and feel of the Services, is the exclusive property of Circle and is protected by U.S. copyright law, as applicable. Except as may be expressly provided herein, nothing contained in these Terms or elsewhere shall be construed as Circle conferring any license or right, by implication, estoppels or otherwise, under copyright, trademark or other intellectual property rights, to the Services or any of the Materials to you.

You are hereby granted a personal, non-exclusive, non-transferable, limited license to use the Services in accordance with these Terms. You are not allowed to modify, copy, distribute, transmit, display, perform, reproduce, publish, license, create derivative works from, transfer or sell any information obtained directly from the Services (including the Materials). Further, you may not reproduce any part of the

Services (including the Materials) and any such violation with respect to the Services will terminate the license(s) granted herein.

You also may not, without the permission of Circle, "mirror" any of the Materials on any other server. Any unauthorized use of any of the Materials may violate copyright laws, trademark laws, the laws of privacy and publicity, and communications regulations and statutes, and subject you to civil and criminal prosecution.

All submissions, suggestions, ideas, and other feedback regarding the Services (the "Submission"), except your personal information, communicated to Circle including through the Services, is and shall become the sole and exclusive property of Circle. Circle is not required to treat any Submissions as confidential, and will not incur any liability as a result of any similarities that may appear in future Circle endeavors. Circle will have exclusive ownership of all present and future existing rights, including all commercial rights, to the Submission of every kind and nature in perpetuity throughout the universe, without acknowledgment or compensation to you. You acknowledge that you are responsible for whatever material you submit, and that you, not Circle, have full responsibility for the Submission, including its legality, reliability, appropriateness, novelty, and copyright.

Circle has the right but not the obligation to monitor and edit or remove any activity or content. Circle takes no responsibility and assumes no liability for any content posted by you or any third party.

The trademarks, service marks, and logos, including but not limited to Circle's name, logo, and all related names, logos, and service names, service marks, designs, and slogans (the "Trademarks") used and displayed on the Services (including the Materials) are registered and unregistered Trademarks of Circle or others. Nothing on the Services should be construed as granting, by implication, estoppel, or otherwise, any license or right to use any Trademark displayed on the Services (including the Materials), without the written permission of the Trademark owner. Circle's Trademarks may not be used in any way, including in advertising or publicity pertaining to distribution of materials on the Services, without prior, written permission of Circle. Circle prohibits use of the Circle and/or Circle's logo as a "hot" link to any website unless Circle first approves the establishment of such a link writing.

7. User Conduct

As a specific condition of your use of any of the Services, you explicitly agree not to, and not to permit any third party to: (a) use any of the Services for any purpose that is unlawful or prohibited by these Terms; (b) intentionally submit or transmit inaccurate information through the Services; (c) impersonate or pretend to be anyone else while using the Services; (d) use the Services in any way that could damage, disable, overburden, or impair any of the Services, or interfere with anyone else's use of any of the Services; (e) attempt to gain unauthorized access to Circle computer systems or networks connected to Circle, through hacking, password mining or any other means; (f) attempt to reverse engineer any portion of any of the Services or attempt to infringe the intellectual property rights of others in any way; (g) obtain or attempt to obtain any materials or information through any means not intentionally made available through any of the Services; (h) attempt to circumvent any content-filtering techniques we employ or attempt to access any feature or area of our Services that you are not authorized to access; (i) introduce any malicious or technologically harmful material into our Services; (j) develop or use any third-party applications that interact with our Services without our prior written consent, including any scripts designed to scrape or extract data from our Services; and (k) use our Services for any illegal or unauthorized purpose, or engage in, encourage or promote any activity that violates these Terms.

Third-Party Content

The Services may contain links to or from third-party websites. Circle has no control over the content or privacy policies of third-party websites that you may link to from the Services or their advertisers. If you visit a linked website, be aware that the third party operating any such website may have access to any information you submit via that website. Circle is not responsible for any third party's failure to establish or abide by its or our Privacy Policy. Check the privacy policy for each website that you visit prior to submitting any personal information. Links to third-party websites do not imply endorsement of the websites by Circle.

9. User Content

1. Companies — Your Content: If you are using the Services on behalf of a company, you may be able to upload, post, or otherwise submit ("Submit") content. Circle claims no ownership of your company content. You or your third-party licensor, as applicable, retain all copyright, patent, and trademark rights to any company content that you post on or through the Services.

2. Messages: The Services may allow Users to send messages ("Messages") to other Users. Circle may terminate the ability of any User to send Messages at any time and for any reason, without notice or liability to that User. If a Registered User sends you an objectionable Message, please notify us by sending an e-mail to legal@circle.so. You agree that Circle may monitor Messages for compliance with these Terms, and therefore, Messages are not confidential or proprietary and you understand that any information sent using Messages has been disclosed beyond the parties to the Messages.
3. Content Generally: All forms of content that Users share with one another or with Circle through our Services are collectively referred to as "User Content."
4. Limited License Grant to Circle: You grant, and you represent and warrant that you have all rights necessary to grant, to Circle a worldwide, non-exclusive, sublicensable, royalty-free, transferable, limited license to use, modify, host, store, remove, publish, perform, reproduce, transmit, or display User Content that you Submit to the Services in order to facilitate the display and use of Your Content in accordance with the applicable settings specified in your Account and the features of the Services you elect to utilize. Circle may use the content in an aggregated manner or for analytics purposes, but not in the manner that specifically identifies you. Circle will not intentionally display your content in a manner inconsistent with the applicable sharing settings in your Account or in a manner inconsistent with the published features of the applicable portions of the Services you utilize unless you tell us to.
5. Limited License Grant to Other Users: By posting or sharing User Content with other Users of the Services, you grant those Users a non-exclusive license to share that User Content with their employees, agents, representatives, and advisors, and to access and use that User Content as permitted by these Terms and the functionality of the Services.
6. Content Disclaimer: You understand that by using the Services, you may encounter data, information, applications, materials, and other content from third parties, including User Content from other Users (collectively, "Third-Party Materials"), and data, information, applications, materials and other content from Circle, that may contain errors, be offensive, indecent, or objectionable. You use the Services, and rely upon any Materials or Services, at your sole risk. Circle will not have any liability to you for any Materials may be found to be offensive, indecent, or that are inaccurate, incomplete, untimely, invalid, illegal, indecent, of poor quality, or otherwise objectionable. We are under no obligation to edit or control User Content that you or other users post or publish, and will not be in any way responsible or liable for User Content. Circle may, however, at any time and without prior notice, screen, remove, edit, or block any User Content that in our sole judgment violates these Terms or is otherwise objectionable.

7. **Creator Terms and Conditions**: The Services may enable creators and brands who are forming communities through the Services to present their own terms and conditions and privacy notices to Users participating in their communities. By participating in any such community or by accepting the creator's terms and conditions and privacy notice online, you thereby signify that you have read and agree to such terms and conditions and privacy notice. Such terms and conditions and privacy notices must not conflict with any terms and conditions of these Terms or our Privacy Policy. Your use of the Services in connection with such communities shall be subject to such creator terms and conditions and privacy notice in addition to these Terms and our Privacy Policy. Any creator User presenting terms and conditions and privacy notices is solely responsible for the content therein and whether or not it is enforceable on the User community members, and we hereby disclaim all responsibility and liability in connection therewith, and creator content and activities on the Services shall be treated as Third-Party Materials, third-party content and third-party services under these Terms.

10. Revision Date, Modifications; Suspensions and Terminations

These Terms are effective and were last updated as of the revision date at the beginning of these Terms. At any time, Circle may revise these Terms at our sole discretion. If we make changes, we will post the revised Terms, and update the revision date above. We may, but are not required to, notify you by sending an email notification to the address associated with your Account or providing notice through our Services. Revisions are effective and binding when posted on the Services. Any continued use of any of the Services following any revision means you agree to the revisions. Circle expressly reserves the right to terminate or discontinue any of the Services at any time and for any reason, with or without notice to you.

11. DMCA Notice

We respect content owner rights, and it is our policy to respond to alleged infringement notices that comply with the Digital Millennium Copyright Act of 1998 ("DMCA").

If you believe that your copyrighted work has been copied in a way that constitutes copyright infringement and is accessible via the Services, please notify our copyright agent as set forth in the DMCA. For your complaint to be valid under the DMCA, you must provide all of the following information in writing:

1. An electronic or physical signature of a person authorized to act on behalf of the copyright owner;
2. Identification of the copyrighted work that you claim has been infringed;
3. Identification of the material that is claimed to be infringing and where it is located on our Service;
4. Information reasonably sufficient to permit us to contact you, such as your address, telephone number, and, e-mail address;
5. A statement that you have a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or law; and
6. A statement, made under penalty of perjury, that the above information is accurate, and that you are the copyright owner or are authorized to act on behalf of the owner.

The above information must be submitted to our DMCA Agent using the following contact information:

Circle, Inc.

Address: Circle, Inc.

Attn: DMCA Agent

228 Park Ave S

PMB 52933

New York, NY 10003

Email: legal@circle.so

UNDER FEDERAL LAW, IF YOU KNOWINGLY MISREPRESENT THAT ONLINE MATERIAL IS INFRINGING, YOU MAY BE SUBJECT TO CRIMINAL PROSECUTION FOR PERJURY AND CIVIL PENALTIES, INCLUDING MONETARY DAMAGES, COURT COSTS, AND ATTORNEYS' FEES.

Please note that the preceding requirements do not constitute legal advice. In accordance with the DMCA and other applicable law, we have adopted a policy of terminating, in appropriate circumstances, users who are deemed to be repeat infringers. We may also at our sole discretion limit access to our Service and/or terminate our Service Accounts of any users who infringe any intellectual property rights of others, whether or not there is any repeat infringement.

12. Disclaimers

THE SERVICES, MATERIALS, AND ALL CONTENT THEREIN ARE PROVIDED ON AN "AS AVAILABLE" AND "AS IS" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT. WE DO NOT REPRESENT OR WARRANT THAT: (A) THE SERVICES AND MATERIALS ARE FREE OF ERRORS; (B) DEFECTS WILL BE CORRECTED; (C) THE SERVICES OR OUR SERVERS ARE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS; OR (D) INFORMATION COMMUNICATED THROUGH THE SERVICES ARE ACCURATE, COMPLETE, OR USEFUL. YOU ACKNOWLEDGE AND AGREE THAT YOUR ACCESS TO, RELIANCE ON, AND USE OF THE SERVICES OR ANY CONTENT THEREIN IS AT YOUR OWN RISK. YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR DEVICE OR LOSS OF DATA THAT RESULTS FROM THE DOWNLOAD OF SUCH CONTENT, MATERIAL AND/OR DATA. WITHOUT LIMITING THE FOREGOING, WE MAKE NO REPRESENTATION OR WARRANTY AS TO THE QUALITY, RELIABILITY, COMPLETENESS, ACCURACY, TIMELINESS, AVAILABILITY, SECURITY OR FUNCTIONALITY OF THE SERVICES OR ANY CONTENT THEREON. WE WILL NOT BE LIABLE FOR ANY HARM TO YOUR COMPUTER SYSTEM OR MOBILE DEVICE, OR LOSS OF DATA, THAT RESULTS FROM YOUR ACCESS TO OR USE OF THE SERVICES OR ANY CONTENT, OR FOR THE DELETION OF, OR THE FAILURE TO STORE. CIRCLE MAKES NO WARRANTY THAT THE SERVICES WILL MEET YOUR REQUIREMENTS OR BE AVAILABLE ON AN UNINTERRUPTED, SECURE, OR ERROR-FREE BASIS OR THAT DEFECTS IN THE SERVICES WILL BE CORRECTED. THE SERVICES MAY NOT BE CONTINUOUSLY AVAILABLE DUE TO MAINTENANCE OR REPAIRS OR DUE TO COMPUTER PROBLEMS OR CRASHES, DISRUPTION IN INTERNET SERVICE OR OTHER UNFORESEEN CIRCUMSTANCES. THE SERVICES AND ASSOCIATED CONTENT ARE INTENDED FOR USE AND DISPLAY ONLY WHERE ITS USE AND DISPLAY ARE PERMISSIBLE IN ACCORDANCE WITH APPLICABLE LAWS AND REGULATIONS.

CIRCLE DISCLAIMS ANY AND ALL RESPONSIBILITY FOR ANY LOSS, INJURY, CLAIM, LIABILITY, OR DAMAGE OF ANY KIND RESULTING FROM, ARISING OUT OF, OR IN ANY WAY RELATED TO (A) ANY ERRORS IN OR OMISSIONS ON OR FROM ANY OF THE SERVICES AND CONTENT THEREIN, INCLUDING BUT NOT LIMITED TO TECHNICAL INACCURACIES AND TYPOGRAPHICAL ERRORS, (B) ANY THIRD-PARTY WEBSITES OR CONTENT THEREIN DIRECTLY OR INDIRECTLY ACCESSED THROUGH LINKS IN THE SITES OR MATERIALS PROVIDED, INCLUDING BUT NOT LIMITED TO ANY ERRORS IN OR OMISSIONS CONTAINED THEREIN, (C) THE UNAVAILABILITY OF ANY OF THE SERVICES OR ANY PORTION THEREOF, (D) YOUR USE OF ANY OF THE SERVICES, OR (E) YOUR USE OF ANY EQUIPMENT OR SOFTWARE IN CONNECTION WITH ANY OF THE SERVICES.

ANY DEALINGS WITH ANY THIRD PARTIES (INCLUDING ADVERTISERS AND/OR SPONSORS) APPEARING ON THE SITES OR MATERIALS PROVIDED OR MADE AVAILABLE IN CONNECTION WITH PARTICIPATION IN ANY OFFERINGS AND ANY OTHER TERMS, CONDITIONS, WARRANTIES OR REPRESENTATIONS ASSOCIATED WITH SUCH ACTIVITIES ARE SOLELY BETWEEN YOU AND SUCH ADVERTISER OR OTHER THIRD PARTIES. WE ARE NOT RESPONSIBLE FOR EXAMINING OR EVALUATING, AND WE DO NOT WARRANT THE OFFERINGS OF, ANY OF THESE BUSINESSES OR INDIVIDUALS OR THE CONTENT OF THEIR WEBSITES. CIRCLE DOES NOT ASSUME ANY RESPONSIBILITY OR LIABILITY FOR THE ACTIONS AND CONTENT OF ALL THESE AND ANY OTHER THIRD PARTIES. YOU SHOULD CAREFULLY REVIEW THEIR PRIVACY STATEMENTS OR POLICIES AND OTHER TERMS OR CONDITIONS OF USE OR SERVICE. CIRCLE IS NOT RESPONSIBLE OR LIABLE TO ANY PARTY WHO PARTICIPATES IN ANY SUCH DEALINGS.

WE ATTEMPT TO DISPLAY THE MATERIALS AND INFORMATION YOU VIEW ON THE SERVICES AS ACCURATELY AS POSSIBLE. BUT WE DO NOT GUARANTEE THE ACCURACY OF SUCH MATERIALS AND INFORMATION.

SOME JURISDICTIONS DO NOT ALLOW THE DISCLAIMER OF IMPLIED TERMS IN CONTRACTS WITH CONSUMERS, SO SOME OR ALL OF THE DISCLAIMERS IN THIS SECTION MAY NOT APPLY TO YOU.

13. Limitation of Liability

IN NO EVENT WILL WE OR OUR DIRECTORS, OFFICERS, EMPLOYEES, AFFILIATES, SUBSIDIARIES, PARENT COMPANIES, MEMBERS, SHAREHOLDERS, AGENTS OR OTHER REPRESENTATIVES BE LIABLE FOR ANY DIRECT, INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR ANY OTHER DAMAGES OF ANY KIND, ARISING OUT OF OR RELATED TO THE SERVICES. OUR TOTAL LIABILITY, WHETHER IN CONTRACT, WARRANTY, TORT (INCLUDING NEGLIGENCE) OR OTHERWISE, EVEN IF FORSEEABLE, WILL NOT EXCEED THE GREATER OF (I) THE TOTAL AMOUNT YOU SPENT ON YOUR BUSINESS DEALINGS WITH US DURING THE MOST RECENT TWELVE-MONTH PERIOD, OR (II) IF YOU HAVE NOT PAID US, THE AMOUNT OF \$100. THESE EXCLUSIONS AND LIMITATIONS OF LIABILITY WILL APPLY TO THE FULLEST EXTENT PERMITTED BY LAW AND WILL SURVIVE CANCELLATION OR TERMINATION OF YOUR ACCOUNT. CERTAIN APPLICABLE LAWS MAY NOT ALLOW THE EXCLUSION OR LIMITATION OF CERTAIN DAMAGES. IF THESE LAWS APPLY TO YOU, SOME OR ALL OF THE ABOVE EXCLUSIONS OR LIMITATIONS MAY NOT APPLY TO YOU, AND YOU MIGHT HAVE ADDITIONAL RIGHTS.

14. Disputes with Third Parties

CIRCLE IS NOT AFFILIATED WITH ANY NON-EMPLOYEE WORKER, BUYER, OR THIRD-PARTY SERVICE, AND ANY DISPUTE YOU HAVE WITH ANY NON-EMPLOYEE WORKER, BUYER, THIRD-PARTY SERVICE, OR OTHER THIRD PARTY, INCLUDING, WITHOUT LIMITATION, ANY OTHER USER OF THE SERVICE, IS DIRECTLY BETWEEN YOU AND THAT THIRD PARTY, AND YOU IRREVOCABLY RELEASE CIRCLE FROM ANY AND ALL CLAIMS, DEMANDS AND DAMAGES (ACTUAL AND CONSEQUENTIAL) OF EVERY KIND AND NATURE, KNOWN AND UNKNOWN, ARISING OUT OF OR IN ANY WAY CONNECTED WITH THOSE DISPUTES. YOU WILL TAKE REASONABLE PRECAUTIONS IN ALL INTERACTIONS WITH OTHER USERS, PARTICULARLY IF YOU MEET OFFLINE OR IN PERSON. YOU ASSUME ALL RISK WHEN ENGAGING THE SERVICES OF ANY OTHER USER AND IN CONNECTION WITH USING THE SERVICE, INCLUDING BUT NOT LIMITED TO ANY RISKS ASSOCIATED WITH SHARING CONFIDENTIAL INFORMATION WITH ANY OTHER USER. SHOULD YOU PERFORM WORK AS AN INDEPENDENT CONTRACTOR FACILITATED BY CIRCLE FOR A THIRD PARTY, YOU ACKNOWLEDGE THAT THE THIRD PARTY FOR WHOM YOU PERFORM SUCH WORK IS THE PARTY ULTIMATELY RESPONSIBLE FOR PAYING YOU FOR THAT WORK. SHOULD CIRCLE NOT RECEIVE PAYMENT FROM THE THIRD PARTY, CIRCLE RESERVES THE RIGHT TO REQUIRE YOU TO SEEK ANY REIMBURSEMENT FOR YOUR WORK DIRECTLY FROM THE THIRD PARTY. IN SUCH INSTANCE, YOU AGREE TO HOLD CIRCLE HARMLESS AND RELEASE CIRCLE FROM ANY ASSOCIATED CLAIMS.

15. Dispute Resolution; Binding Arbitration

READ THIS SECTION CAREFULLY BECAUSE IT REQUIRES THE PARTIES TO ARBITRATE THEIR DISPUTES AND LIMITS THE MANNER IN WHICH YOU CAN SEEK RELIEF FROM US. This Section (the "Arbitration Agreement") applies to and governs any dispute, controversy, or claim between you and us that arises out of or relates to, directly or indirectly: (a) these Terms, including the formation, existence, breach, termination, enforcement, interpretation, validity, or enforceability thereof; (b) access to or use of the Services, including receipt of any advertising, marketing, or other communications from us; (c) any transactions through, by, or using the Services; or (d) any other aspect of your relationship or transactions with us, directly or indirectly, as a user or consumer ("Claim" or collectively, "Claims"). The Arbitration Agreement shall apply, without limitation, to all Claims that arose or were asserted before or after your consent to these Terms.

If you are a new user, you can reject and opt-out of this Arbitration Agreement within thirty (30) days of accepting these Terms by emailing us at legal@circle.so with your first and last name and stating your intent to opt-out of the Arbitration Agreement. Opting out of this Arbitration Agreement does not affect the binding nature of any other part of these Terms, including the provisions regarding controlling law or in which courts any disputes must be brought.

For any Claim, you agree to first contact us at legal@circle.so and attempt to resolve the dispute with us informally. In the unlikely event that we have not been able to resolve a Claim after sixty (60) days, we each agree to resolve any Claim through binding arbitration by JAMS, under the Optional Expedited Arbitration Procedures then in effect for JAMS (the "Rules"), except as provided herein. JAMS may be contacted at www.jamsadr.com, where the Rules are available. In the event of any conflict between the Rules and this Arbitration Agreement, the Arbitration Agreement shall control. The arbitration will be conducted in the U.S. county where you live or Kings County, New York, unless you and we agree otherwise. If you are using the Services for commercial purposes, each party will be responsible for paying any JAMS filing, administrative and arbitrator fees in accordance with JAMS rules, and the award rendered by the arbitrator will include costs of arbitration, reasonable attorneys' fees and reasonable costs for expert and other witnesses. If you are an individual using the Services for non-commercial purposes: (i) JAMS may require you to pay a fee for the initiation of your case, unless you apply for and successfully obtain a fee waiver from JAMS; (ii) the award rendered by the arbitrator may include your costs of arbitration, your reasonable attorney's fees, and your reasonable costs for expert and other witnesses; and (iii) you may sue in a small claims court of competent jurisdiction without first engaging in arbitration, but this does not absolve you of your commitment to engage in the informal dispute resolution process. Any judgment on the award rendered by the arbitrator may be entered in any court of competent jurisdiction. You and we agree that the arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. The arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether these Terms, or any provision of these Terms, is unconscionable or illusory or any defense to arbitration, including waiver, delay, laches, unconscionability, or estoppel.

NOTHING IN THIS SECTION WILL BE DEEMED AS: PREVENTING US FROM SEEKING INJUNCTIVE OR OTHER EQUITABLE RELIEF FROM THE COURTS AS NECESSARY TO PREVENT THE ACTUAL OR THREATENED INFRINGEMENT, MISAPPROPRIATION, OR VIOLATION OF OUR DATA SECURITY, INTELLECTUAL PROPERTY RIGHTS OR OTHER

PROPRIETARY RIGHTS; OR PREVENTING YOU FROM ASSERTING CLAIMS IN SMALL CLAIMS COURT, IF YOUR CLAIMS QUALIFY AND SO LONG AS THE MATTER REMAINS IN SUCH COURT AND ADVANCES ON ONLY AN INDIVIDUAL (NON-CLASS, NON-COLLECTIVE, AND NON-REPRESENTATIVE) BASIS.

If this Arbitration Agreement is found to be void, unenforceable, or unlawful, in whole or in part, the void, unenforceable, or unlawful provision, in whole or in part, shall be severed. Severance of the void, unenforceable, or unlawful provision, in whole or in part, shall have no impact on the remaining provisions of the Arbitration Agreement, which shall remain in force, or the parties' ability to compel arbitration of any remaining claims on an individual basis pursuant to the Arbitration Agreement. Notwithstanding the foregoing, if the Class Action/Jury Trial Waiver is found to be void, unenforceable, or unlawful, in whole or in part, because it would prevent you from seeking public injunctive relief, then any dispute regarding the entitlement to such relief (and only that relief) must be severed from arbitration and may be litigated in a civil court of competent jurisdiction. All other claims for relief subject to arbitration under this Arbitration Agreement shall be arbitrated under its terms, and the parties agree that litigation of any dispute regarding the entitlement to public injunctive relief shall be stayed pending the outcome of any individual claims in arbitration.

16. Class Action/Jury Trial Waiver

WITH RESPECT TO ALL PERSONS AND ENTITIES, REGARDLESS OF WHETHER THEY HAVE OBTAINED OR USED THE SERVICES FOR PERSONAL, COMMERCIAL OR OTHER PURPOSES, ALL CLAIMS MUST BE BROUGHT IN THE PARTIES' INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS ACTION, COLLECTIVE ACTION, PRIVATE ATTORNEY GENERAL ACTION OR OTHER REPRESENTATIVE PROCEEDING. THIS WAIVER APPLIES TO CLASS ARBITRATION, AND, UNLESS WE AGREE OTHERWISE, THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PERSON'S CLAIMS. YOU AND CIRCLE AGREE THAT, BY ENTERING INTO THIS AGREEMENT, YOU AND CIRCLE ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN A CLASS ACTION, COLLECTIVE ACTION, PRIVATE ATTORNEY GENERAL ACTION, OR OTHER REPRESENTATIVE PROCEEDING OF ANY KIND.

17. Governing Law and Venue

These Terms, your access to and use of the Services, and any claim or dispute you may bring against Circle, its affiliates, subsidiaries, parent companies, members, shareholders, agents and assigns, shall be governed by and construed and enforced in accordance with the laws of the State of New York, without regard to conflict of law rules or principles (whether of the State of New York or any other jurisdiction) that would cause the application of the laws of any other jurisdiction. Any dispute between the parties that is not subject to arbitration or cannot be heard in small claims court, shall be resolved in the state or federal courts of the State of New York and the United States, respectively, sitting in the State of New York, and Kings County.

18. Termination

Notwithstanding anything contained in these Terms, we reserve the right, without notice and in our sole discretion, to terminate your right to access or use the Services at any time and for any or no reason, and you acknowledge and agree that we shall have no liability or obligation to you in such event and that you will not be entitled to a refund of any amounts that you have already paid to us, to the fullest extent permitted by applicable law.

19. Severability

If any term, clause or provision of these Terms is held invalid or unenforceable, then that term, clause or provision will be severable from these Terms and will not affect the validity or enforceability of any remaining part of that term, clause or provision, or any other term, clause or provision of these Terms.

20. Assignment

If Circle sells its assets to or is acquired by another company, or if it merges with another company, you, by using the Services, authorize Circle to assign the information you provided to Circle or that Circle collected while you used the Services in connection with such sale or merger.

21. Consent to Electronic Communication

By using the Services, you consent to receiving electronic communications from us regarding your Account, or for operational and informational purposes. You also agree that by using the Services, you affirmatively consent to Circle using electronic records or your digital signature to satisfy any statute, regulation, or rule of law requiring that such information be provided in writing and that you have not withdrawn such consent.

22. General

These Terms constitute the entire agreement between you and Circle relating to your access to and use of the Services. These Terms, and any rights and licenses granted hereunder, may not be transferred or assigned by you without the prior written consent of Circle. No waiver of any provision of these Terms will constitute a waiver of such provision in any prior, concurrent or subsequent circumstance, and Circle's failure to assert any right or provision under these Terms shall not constitute a waiver of such right or provision. Except as otherwise provided herein, these Terms are intended solely for the benefit of the parties and are not intended to confer third-party beneficiary rights upon any other person or entity.

If you have any questions, comments or concerns about the Terms, you may contact us using the information provided below:

CircleCo, Inc.
228 Park Ave S
PMB 52933
New York, NY 10003